

II

The functional approach to the separation-of-powers doctrine and the Court's more recent immunity decisions²⁹ converge on the following principle: The scope of immunity is determined by function, not office. The wholesale claim that the President is entitled to absolute immunity in all of his actions stands on no firmer ground than did the claim that all Presidential communications are entitled to an absolute privilege, which was rejected in favor of a functional analysis, by a unanimous Court in *United States v. Nixon*, 418 U. S. 683 (1974). Therefore, whatever may be true of the necessity of such a broad immunity in certain areas of executive responsibility,³⁰ the only question that must be answered here is whether the dismissal of employees falls within a constitutionally assigned executive function, the performance of which would be substantially impaired by the possibility of a private action for damages. I believe it does not.

Respondent has so far proceeded in this action on the basis of three separate causes of action: two federal statutes—5 U. S. C. § 7211 (1976 ed., Supp. IV) and 18 U. S. C. § 1505—and the First Amendment. At this point in the litigation, the availability of these causes of action is not before us. Assuming the correctness of the lower court's determination that the two federal statutes create a private right of action, I find the suggestion that the President is immune from those causes of action to be unconvincing. The attempt to found such immunity upon a separation-of-powers argument is particularly unconvincing.

The first of these statutes, 5 U. S. C. § 7211 (1976 ed., Supp. IV), states that "[t]he right of employees . . . to . . .

²⁹ See *Supreme Court of Virginia v. Consumers Union of United States*, 446 U. S. 719 (1980); *Butz v. Economou*, 438 U. S. 478, 511 (1978).

³⁰ I will not speculate on the Presidential functions which may require absolute immunity, but a clear example would be instances in which the President participates in prosecutorial decisions.